

the power is to be exercisable notwithstanding infancy, an infant may appoint even although his interest may be affected by the appointment (*a*). A trust which requires the exercise of discretion cannot be executed by an infant (*b*)].

11. Power of passing the estate. — Effect of feoffment, or delivery of chattels. — Effect of delivery of a deed — Effect of his assurance without feoffment, delivery, or deed. — With respect to an infant's ability to pass the estate, it seems to be generally agreed that, at common law, a *feoffment* of lands (*c*) or an actual *delivery* of goods and chattels (*d*), is an act of so great solemnity, that it serves to carry the present possession, and is voidable only, and not void. Where the property is of an *incorporeal* nature, as the delivery of the thing itself is impossible, the common law has substituted the kindred precaution of *delivery of the deed*. The effect of a deed delivered by an infant has been much disputed; by some it has been held to be absolutely null and void (*e*), by others to be voidable only (*f*), and by others again to be void or voidable, as the validity of the execution is taken to be for the infant's benefit or not (*g*). Another opinion still (which is that of Perkins (*h*), and was adopted in the case of *Zouch v. Parsons* (*i*), and may be regarded as the doctrine of the present day) is, that an infant's deed, where the delivery of it answers to livery of seisin, and operates as the convey-

695; S. C. 1 Ves. 298; *Re Cardross's Settlement*, 7 Ch. D. 728.]

[(*a*) *Re Cardross's Settlement*, 7 Ch. D. 728; *Re D'Angibau*, 15 Ch. D. 228.]

[(*b*) *King v. Bellord*, 1 H. & M. 343.]

(*c*) *Thompson v. Leach*, 3 Mod. 311, *per Cur.*; Br. Ab. "Covert. and Inf." pl. 1; and see Co. Lit. 42, b, 51, b; *Whittingham's case*, 8 Rep. 42, b; Br. Ab. "Covert. and Inf." pl. 40.

(*d*) *Perk.* 14; Br. Ab. "Covert. and Inf." pl. 1.

(*e*) Br. Ab. "Covert. and Inf." pl. 1 & 10; *Lloyd v. Gregory*, Cro. Car. 502, *per Cur.*; *Thompson v. Leach*, 3 Mod. 310, *per Cur.* See observations on the last two cases in *Zouch v.*

Parsons, 3 Burr. 1806 & 1807; and see *Humphreston's case*, 2 Leon. 216.

(*f*) *Norton v. Turvill*, 2 P. W. 145, *per Sir J. Jekyll*.

(*g*) See *Zouch v. Parsons*, 3 Burr. 1804; and see *Humphreston's case*, 2 Leon. 216; *Lloyd v. Gregory*, Cro. Car. 502; *Nightingale v. Earl Ferrers*, 3 P. W. 210; *Inman v. Inman*, 15 L. R. Eq. 260.

(*h*) Sects. 12 & 154; and see Br. Ab. "Dum fuit infra ætatem," pl. 1; *id.* "Covert. and Inf." pl. 12; *Stone v. Wythipole*, Cr. El. 126; *Marlow v. Pitfield*, 1 P. W. 559.

(*i*) 3 Burr. 1807; confirmed by the recent case of *Allen v. Allen*, 1 Conn. & Laws. 427, 2 Drur. & War. 307.